CRIMINAL LAW

Tuesday, Oct. 13
(Lecture 13)

Hello! This slide will help you prepare for today's class.

- **We will start by finishing our discussion objective *mens rea*. We will discuss *Beatty, Javanmardi* and *Goforth.***
- **We will then turn to regulatory offences! We will start by discussing what they are and how they are distinct from true crimes. Please be prepared to discuss *Wholesale Travel*.**
- **Next, we will talk about the different *mens rea* requirements that may attach to regulatory offences. Please be ready to discuss *Sault Ste Marie* and *Chapin*.**
- **Then, we will return to *Viens* and involuntariness. Have your remaining questions about that *Viens* ready!**

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Objectives for Week 6

42. Distinguish subjective fault from objective fault.

43. Build your "statutory interpretation toolkit":
    - Subjective fault presumption

44. Reflect on the disagreement between Lamer C.J. and McLachlin J. (as she then was) in *Creighton* about the nature of the objective test.

45. **Explain and apply the modified objective test.**

46. Explain when a marked and substantial departure standard applies.

R. v. Creighton – McLachlin J.

There is "a single, uniform legal standard of care for [objective *mens rea*] offences, subject to one exception: incapacity to appreciate the nature of the risk which the activity in question entails."

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45. **Explain and apply the modified objective test.**

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Modified Objective Test

Is the Accused's conduct a *marked departure* from the standard of care that a reasonable person would have exercised *in the same circumstances*? Ask:

1. **In light of all the relevant evidence, would a reasonable person have foreseen the risk and taken steps to avoid it if possible?**
2. **If so, was the accused's failure to foresee the risk and take steps to avoid it if possible a *marked departure* from the standard of care expected of a reasonable person in the accused's circumstances?**

R. v. Beatty

"It is only when there is a 'marked departure' that the conduct demonstrates sufficient blameworthiness to support a finding of penal liability."

"[W]hat constitutes a "marked departure" from the standard expected of a reasonably prudent driver is a matter of degree. The lack of care must be serious enough to merit punishment."

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R. v. Beatty

"The underlying premise for finding fault based on objectively dangerous conduct that constitutes a marked departure from the norm is that a reasonable person in the position of the accused would have been aware of the risk posed […] and would not have undertaken the activity. However, there will be circumstances where this underlying premise cannot be sustained because a reasonable person in the position of the accused would not have been aware of the risk or, alternatively, would not have been able to avoid creating the danger."

Modified Objective Test





Modified Objective Test

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R. v. Beatty

249 (1) Every one commits an offence who operates

(a) a motor vehicle in a manner that is dangerous to the public, having regard to all the circumstances, including the nature, condition and use of the place at which the motor vehicle is being operated and the amount of traffic that at the time is or might reasonably be expected to be at that place;

(4) Every one who commits an offence under subsection (1) and thereby causes the death of any other person is guilty of an indictable offence and liable to imprisonment for a term not exceeding fourteen years.

Modified Objective Test

Is the Accused's conduct a *marked departure* from the standard of care that a reasonable person would have exercised *in the same circumstances*? Ask:

1. **In light of all the relevant evidence, would a reasonable person have foreseen the risk and taken steps to avoid it if possible?**
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"Activity-sensitive approach"

"Evidence of training and experience may be used to

rebut an allegation of being unqualified to engage in an activity or

to show how a reasonable person in the circumstances of the accused would have performed the activity"

(SCD 476)



R v Goforth

Relevant circumstance or irrelevant personal characteristic?

"The issue that arises in this appeal is whether Mr. Goforth's alleged status as a secondary caregiver is a relevant circumstance or an irrelevant personal characteristic" when assessing his objective *mens rea*.

- "The existence or nature of a spousal relationship *can* be considered a relevant circumstance"
- On the facts, "none of these alleged circumstances could have possibly prevented Mr. Goforth from foreseeing the risk of harm to them.
- ***Pay attention to context! And remember the test this helps us apply.***

Modified Objective Test

Is the Accused's conduct a *marked departure* from the standard of care that a reasonable person would have exercised *in the same circumstances*? Ask:

1. **In light of all the relevant evidence, would a reasonable person have foreseen the risk and taken steps to avoid it if possible?**
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Criminal Negligence

219. (1) Everyone is criminally negligent who […]

(b) in omitting to do anything that it is his duty to do, shows wanton or reckless disregard for the lives or safety of other persons.

(2) For purposes of this section, "duty" means a duty imposed by law.

[S. 220 (death); s. 221 (bodily harm)]

Criminal Negligence (s. 219)

Is the Accused's conduct a *marked and substantial departure* from the standard of care that a reasonable person would have exercised in the same circumstances?

R v Javanmardi

"In *J.F.*, Fish J. did not fully explain how to distinguish between a "marked" and a "marked and substantial" departure, as the case did not "turn on the nature or extent of the difference between the two standards" (paras. 10-11). In this appeal, as well, the differences in etymology are not dispositive and need not be resolved." (para. 23)

R v Javanmardi

"These differences of degree [between "marked" and "marked and substantial" departure] cannot be measured by a ruler, a thermometer or any other instrument of calibrated scale. The words "marked and substantial" departure are adjectives used to paraphrase or interpret "wanton or reckless disregard" in section 219 of the Code but they do not, and cannot, indicate any objective and fixed order of magnitude that would have prescriptive value from one case to another. As with the assessment of conduct in cases of criminal negligence, the assessment of fault by the trier of fact is entirely contextual."

(*R. v. Fontaine*, 2017 QCCA 1730, 41 C.R. (7th) 330, at para. 27 (per Healy JA), quoted in *Javanmardi* at 22)

Modified Objective Test (Criminal Negligence)

Is the Accused's conduct a *marked and substantial departure* from the standard of care that a reasonable person would have exercised *in the same circumstances*? Ask:

1. **In light of all the relevant evidence, would a reasonable person have foreseen the risk and taken steps to avoid it if possible?**

2. **If so, was the accused's failure to foresee the risk and take steps to avoid it if possible a *marked departure* from the standard of care expected of a reasonable person in the accused's circumstances?**

Mens Rea & Symmetry

86(1) Every person commits an offence who, without lawful excuse, uses, carries, handles, ships, transports, or stores a firearm […] in a careless manner or without reasonable precautions for the safety of other persons

Actus Reus	*Mens Rea*
Uses/carries/handles/ships/ transports [*conduct*]	***Apply modified objective test!***
Firearm [*circumstance*]	
Careless manner/without reasonable precautions for safety of other persons[*circumstance*]	
Without lawful excuse [*circumstance*]	
{Voluntary}	//////////////////

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Objectives for Week 7

46. **Explain the distinction between regulatory offences and true crimes, including the key rationales for that distinction.**

47. Explain the distinction between strict liability offences and absolute liability offences and identify them using the principles of statutory interpretation.

48. Build your "statutory interpretation toolkit":
    - Presumption of strict liability
    - *Charter* limitation on absolute liability offences

49. Explain and apply the defence of due diligence.

50. Revisit the concept of "involuntariness" and consider the significance of its status as an *actus reus* element in relation to regulatory offences.

FEDERAL POWERS (s. 91)	**PROVINCIAL POWERS (s. 92)**
27. The Criminal Law, except the Constitution of Courts of Criminal Jurisdiction, but including the Procedure in Criminal Matters. **[“*The Criminal Law Power*”]**	**13. Property and Civil Rights in the Province.** **15. The Imposition of Punishment by Fine, Penalty, or Imprisonment for enforcing any Law of the Province made in relation to any Matter coming within any of the Classes of Subjects enumerated in this Section.**

Criminal Offices vs. Regulatory Offences

" [R]egulatory offences tend to be directed toward legitimate activities, not conduct that is "inherently wrongful" […] For regulatory offences, the emphasis is on the ability to control legitimate activities that require special care and the creation of standards of behaviour."

L. Silver, "Regulating COVID-19 From the Criminal Law Perspective"
(ABlawg.ca, April 29, 2020)

Wholesale Travel

"The objective of regulatory legislation is to protect the public or broad segments of the public (such as employees, consumers and motorists, to name but a few) from the potentially adverse effects of otherwise lawful activity.

Regulatory legislation involves a shift of emphasis from the protection of individual interests and the deterrence and punishment of acts involving moral fault to the protection of public and societal interests."

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Fault Ladder

Higher-Order Mental States ***Accused's deeper reasons for action*** (not an 'ingredient' in most offences)	- *Motive [need not be proved]* - **Ulterior Purpose**
Subjective Fault ***What was in Accused's mind?*** (default for criminal offences, i.e., presumptive starting point when interpreting true crimes)	- **Intent** - **Knowledge/Wilful Blindness** - **Recklessness**
Objective Fault ***Did Accused's conduct fall below an objective standard?*** (criminal/penal negligence only for true crimes if clear legislative intent to establish objective fault offence; strict liability only for regulatory)	- **Criminal Negligence** (s. 219) - **Penal Negligence**
	Strict Liability (default for regulatory offences; i.e. presumptive starting point when interpreting regulatory offences)
No Fault Required	**Absolute Liability** (cannot be combined with possibility of imprisonment)

FEDERAL POWERS (s. 91)	**PROVINCIAL POWERS (s. 92)**
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Regulatory Offences - *MR*

1. Subjective *Mens Rea* (Crown must prove AR and MR)
2. Strict Liability (Crown must prove AR; defence of due diligence available, burden on defence/reverse onus)
3. Absolute Liability (Crown must prove AR; no defence of due diligence available, i.e., MR not at issue)

Fault Ladder (Regulatory Offences)

Higher-Order Mental States ***Accused's deeper reasons for action*** (not an 'ingredient' in most offences)	**- Motive** [need not be proved] **- Ulterior Purpose** [only some offences]
Subjective Fault ***What was in Accused's mind?*** (default for criminal offences, i.e. presumptive starting point when interpreting true crimes)	**- Intention** **- Recklessness** **- [Knowledge/Wilful Blindness]**
Objective Fault ***Did Accused's conduct fall below an objective standard?*** (*True crimes* - only where presumption of subjective fault overridden by clear legislative intent.)	**- Criminal Negligence** (s. 219) (*marked and substantial departure*) **- Penal Negligence [other]** (*marked departure*)
	Strict Liability (*default for regulatory offences; i.e. presumptive starting point when interpreting regulatory offences*)
No Fault Required	**Absolute Liability** (cannot be combined with possibility of imprisonment)

Defence of Due Diligence

It is "open to the accused to avoid liability by proving [on a balance of probabilities] that [he/she/they] took all reasonable care. This involves consideration of what a reasonable [person] would have done in the circumstances.

The defence will be available if the accused reasonably believed in a mistaken set of facts which, if true, would render the act or omission innocent, or if [he/she/they] took all reasonable steps to avoid the particular event."

Defence of Due Diligence

Rice bran wax



Soy wax



Sault Ste. Marie

"[Regulatory offences] would [require subjective *mens rea*] only if such words as "wilfully," "with intent," "knowingly," or "intentionally" are contained in the statutory provision creating the offence. […]

Offences of absolute liability would be those in respect of which the Legislature had made it clear that guilt would follow proof merely of the proscribed act. [1] The overall regulatory pattern adopted by the Legislature, [2] the subject matter of the legislation, [3] the importance of the penalty, and [4] the precision of the language used will be primary considerations in determining whether the offence falls into the third category."

Sault Ste. Marie

> Presume Strict Liability

> To Identify Subjective *Mens Rea* –

- Clear words like "intent" or "knowing" …

> To Identify Absolute Liability –

- "Legislature had made it clear…"; primarily consider –
  (1) Overall regulatory pattern;
  (2) Subject matter of legislation;
  (3) Importance of penalty; and
  (4) Language used

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Charter, s. 7

Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice.

Motor Vehicle Reference

"The combination of imprisonment and of absolute liability violates s. 7 of the *Charter*…"

Statutory Interpretation Toolkit

- ✓ The modern principle of statutory interpretation (*Rizzo Shoes*)
- ✓ The principle of bilingual interpretation
- ✓ The rule of strict construction (*Paré*)
- ✓ The purposive approach to *Charter* interpretation (*Hunter)*
- ✓ The symmetry rule of thumb [for subjective *mens rea*] (Roach)
- ✓ The subjective fault presumption [for *mens rea*] (*Zora*)
- ✓ **Presumption of strict liability (for regulatory offences)**
- ✓ ***Charter* limitation on absolute liability offences**



Highway Traffic Act, R.S.O. 1990, c. H.8

S. 104 (2.2) No parent or guardian of a person under sixteen years of age shall authorize or knowingly permit that person to ride a bicycle, other than a power-assisted bicycle, on a highway unless the person is wearing a bicycle helmet as required by subsection (2.1).

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Highway Traffic Act, R.S.O. 1990, c. H.8

84.1 (1) Where a wheel becomes detached from a commercial motor vehicle, or from a vehicle being drawn by a commercial motor vehicle, while the commercial motor vehicle is on a highway, the operator of the commercial motor vehicle and the owner of the vehicle from which the wheel became detached are guilty of an offence.

(5) It is not a defence to a charge under subsection (1) that the person exercised due diligence to avoid or prevent the detaching of the wheel.

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Highway Traffic Act, R.S.O. 1990, c. H.8

S. 106 (4) No person shall drive on a highway a motor vehicle in which there is a passenger who is under 16 years old unless, […]

(b) that passenger is required by the regulations to be secured by a child seating system or child restraint system, and is so secured.

(8.3) Every person who contravenes or fails to comply with this section or a regulation made under this section is guilty of an offence and on conviction is liable to a fine of not less than $200 and not more than $1,000.

Sault Ste. Marie

> Presume Strict Liability

> To Identify Subjective *Mens Rea* –

- Clear words like "intent" or "knowing" …

> To Identify Absolute Liability –

- "Legislature had made it clear…"; primarily consider –
  (1) Overall regulatory pattern;
  (2) Subject matter of legislation;
  (3) Importance of penalty; and
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(b) that passenger is required by the regulations to be secured by a child seating system or child restraint system, and is so secured.

Scenario 1: Bertha opens the car door for her six-year-old son and tells him to get in and buckle up. She does not check his seatbelt. Looking in the rearview mirror, she sees him bouncing around but does not think much of it. **Bertha is pulled over and charged under s. 106(4)(b). She honestly believed her son was buckled in.**

Could Bertha claim the defence of due diligence?

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(b) that passenger is required by the regulations to be secured by a child seating system or child restraint system, and is so secured.

Scenario 2: Bertha secures her six-year-old son in his booster seat and checks that his seatbelt is correctly fastened. As she is driving, her son quietly unclips his seatbelt. He has never done this before. **Bertha is pulled over and charged under s. 106(4)(b). She honestly believed her son was buckled in.**

Could Bertha claim the defence of due diligence?

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R. v. Viens

"In absolute liability offences the defendant cannot raise the absence of *mens rea* to escape liability. In strict liability offences, once the prosecution proves the *actus reus* the *mens rea* is presumed unless a defence of due diligence is made out. It is therefore legitimate to ask if and how a defendant could raise the issue of involuntariness in the context of absolute and strict liability offences if the requirement of voluntariness attaches only to the *mens rea*? It should not surprise that Lamer C.J. in *Daviault*, at p. 71, stated that he preferred associating voluntariness with the *actus reus* "so that the defence clearly be available in strict liability offences."

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